be $6.90 per dozen delivered in Zone No. 1. For deliveries to zones other than Zone No. 1, H. J. Heinz and Company shall add in each case the freight differential for that zone which it has customarily added in the past for this type of item.

(c) The zones referred to in this order are the zones now established by H. J. Heinz and Company in fixing selling prices. They are indicated on the accompanying diagram.[1]

(d) H. J. Heinz and Company shall give the same discounts, cold storage allowances, and other allowances which it gives on other baked bean items handled by it when making sales of Heinz Brand frozen baked beans and Heinz Brand baked beans with molasses sauce. No seller shall change any of these discounts if the change results in a higher selling price.

(e) On and after March 8, 1943, H. J. Heinz and Company shall supply a written notification to each retailer before or at the time of the first delivery of Heinz Brand frozen baked beans to that retailer. Except for the proper insertions, the written notification shall read as follows:

Notification from H. J. Heinz and Company to Retailers

OPA has authorized us to charge retailers in your area the following price for the 17½ ounce package of Heinz Brand frozen baked beans: $_____ per dozen delivered to you, subject to all customary discounts and other allowances. OPA authorizes retailers to establish selling prices for this item by adding to their net cost to the retailer 36% of that net cost. "Net cost" means the invoice cost at your customary receiving point, less all discounts other than for prompt payment, and excluding charges for local hauling. These ceiling prices shall be figured to the nearest cent (raise one-half cent fractions to the next even cent). However, your ceiling price for this item per package must not exceed $_____ per package. OPA requires that you keep this notice for examination.

(f) This Order No. 317 may be revoked or amended at any time by the Price Administrator.

(g) This Order No. 317 (§ 1499.1753) shall become effective March 8, 1943.

(Pub. Laws 421 and 729, 77th Cong.; E.O. 9250, 7 F.R. 7871)

Issued this 6th day of March 1943.

PRENTISS M. BROWN,
Administrator.

[F. R. Doc. 43-3617; Filed, March 6, 1943; 5:09 p. m.]

TITLE 46—SHIPPING

Chapter IV—War Shipping Administration

[General Order 24, Supp. 2]

PART 310—MERCHANT MARINE TRAINING

MISCELLANEOUS AMENDMENTS

General Order No. 24 (Emergency Regulations Governing the Appointment and Training of Cadets in the United States Merchant Marine Cadet Corps) is amended, effective March 1, 1943, by striking out all of §§ 310.47 (b) and (e), 310.54 (d) and 310.55 (a) and inserting in lieu therof the following:

§ 310.47 *General requirements.* * * *

(b) A candidate must be not less than 17 years and six months of age nor more than 23 years of age on the date his application is approved.

* * * * *

(e) A candidate may be admitted to a Basic School or the Academy for preliminary training at an age of not less than 17 years and six months, but will not be assigned to a merchant vessel until he has reached his eighteenth birthday. In the event a candidate does not execute oath as Cadet within four months of the date of approval of his application, his name may be removed from the eligible list at the discretion of the Supervisor. In no event shall a candidate's name remain on the eligible list for a period exceeding six months.

§ 310.54. *Eligibility lists.* * * *

(d) The names of candidates over 17 years and nine months of age shall neither be placed on the eligible lists nor shall they be appointed Cadets until they have been enrolled and have received training in the United States Maritime Service. A favorable recommendation from the Superintendent of the particular United States Maritime Service Training Station at which a candidate received training, must be obtained before his name is placed on the eligible list. Any candidate over 17 years and nine months of age whose application was received prior to March 1, 1943, and who executes oath as Midshipman, Merchant Marine Reserve of the United States Naval Reserve, before May 1, 1943, shall be exempt from the provisions of this section, providing he is ordered to report for preliminary training by May 1, 1943.

§ 310.55 *Appointments and assignments.* (a) A successful candidate, who has passed the Naval Reserve physical examination, shall be appointed a Cadet by the Supervisor and assigned by the District Instructor to preliminary training and basic Naval Science classes at a designated Basic School or the Academy. Appointments shall be made in accordance with state and territory quotas which are based on comparative populations as determined from the last census. The Supervisor may, however, appoint, not to exceed a total of ten Cadets each month, from all states or territories whose quotas are filled, providing the Superintendent of a Maritime Service Training Station certifies that such candidates have been outstanding during their period of training as apprentice seamen.

(E.O. 9198, July 11, 1942; 7 F.R. 5383)

E. S. LAND,
Administrator.

MARCH 5, 1943.

[F. R. Doc. 43-3546; Filed, March 5, 1943; 4:54 p. m.]

[1] Filed as part of the original document.

TITLE 49—TRANSPORTATION AND RAILROADS

Chapter I—Interstate Commerce Commission

[Service Order 112, Corrected]

PART 95—CAR SERVICE

FREE TIME ON FRESH OR GREEN FRUITS OR VEGETABLES IN REFRIGERATOR CARS

At a session of the Interstate Commerce Commission, Division 3, held at its office in Washington, D. C., on the 3rd day of March, A. D. 1943.

It appearing that certain shippers of fresh or green fruits or vegetables in refrigerator cars have been moving cars from one point of delivery within the switching limits of a city or town to other points of delivery within such limits, and thereby delaying the unloading and increasing the free time for unloading under the demurrage rules; in the opinion of the Commission an emergency exists requiring immediate action to prevent shortage of railroad equipment and congestion of traffic:

It is ordered, That:

§ 95.305 *Free time on fresh or green fruits or vegetables in refrigerator cars.* (a) The maximum free time allowed at destination on any refrigerator car loaded with fresh or green fruits or vegetables as defined in Service Order No. 70, as amended, shall be 48 hours, computed from the first 7:00 a. m. after the first notice and placement on any hold or inspection track or unloading track, or constructive placement on an other-than-public-delivery track, until car is unloaded, provided that the time between receipt of an order to move a car from one location to another and placement of the car at the new location shall not be counted against the car, except that any period of time between 7:00 a. m. of the day an order to move a car is received and the hour such order is received shall be counted as one day. The provisions of this order shall apply whether the car is reconsigned or reshipped to other points within the switching limits of the destination. For purposes of this order the destination shall be any point of railroad delivery within the switching limits of the city or town at which the car is unloaded. The operation of all rules relating to free time in demurrage tariffs (other than port demurrage tariffs) insofar as the provisions thereof are inconsistent with this order are suspended, except the provision for eliminating Sundays and legal holidays in computing free time. This order shall not affect demurrage rule No. 8 of Agent B. T. Jones I.C.C. 3722, or similar rules in other demurrage tariffs, relating to the cancelation or refunding of demurrage under emergency conditions. Nothing in this order shall be construed to amend or modify the provisions of Service Order No. 70, as amended. (40 Stat. 101, sec. 402, 41 Stat. 476, sec. 4, 54 Stat. 901; 49 U.S.C. 1 (10-(17))

(b) Each railroad, on or before the effective date of this section, and upon